

NEWSLETTER N. 513 of November 8, 2023

Telemarketing: the Authority fines a company €70,000

Private cameras, Authority: no recording of public areas

Information system for addictions: Authority's approval

Privacy authorities worldwide: AI must put humans at the center

Telemarketing: the Authority fines a company €70,000*

With the purchase of coffee came the nuisance call

*The effectiveness of the measure has been suspended by the Civil Court of Rome

With the purchase of coffee came the nuisance call. The privacy authority has imposed a fine of €70,000 on a coffee-producing company for promoting its brand through unwanted, persistent, and time-concentrated calls, mostly directed at users registered in the Public Opposition Register (RPO). The Authority acted following numerous reports and complaints from users who claimed to have received calls even from spoofed phone numbers. In many cases, the unwanted calls followed the purchase of coffee. In response to the Authority's request for information, the company stated that the telemarketing activity involved personal data of users obtained through various means: via the form on its website, through word of mouth from customers, the "Refer a Friend" program, and contact lists collected from third-party companies.

From the checks carried out by the Authority, several violations emerged, starting with the use of data for marketing purposes without having obtained users' consent and without providing them with a proper notice (absent during the calls and insufficient on the website since the promotional activity was not indicated among the purposes pursued by the company). This same violation also concerned users who had purchased coffee through the call center, as the purchase order was considered proof of consent to marketing. Furthermore, the company had not implemented preventive checks to verify whether the numbers in its database were registered in the Public Opposition Register and had completely omitted checks on the data acquisition process by third-party companies.

In light of the serious violations found, the Authority therefore imposed a fine of €70,000 on the company for unlawful processing of personal data. The company must also delete the unlawfully acquired data for marketing purposes and implement appropriate technical, organizational, and control measures so that the processing of users' personal data complies with privacy regulations throughout the entire supply chain.

Private cameras, Authority: no recording of public areas

The cameras "listened" to the conversations of passersby

When installing surveillance systems in personal or domestic settings, in addition to respecting the privacy of neighbors, it is necessary to pay maximum attention to not recording public areas. This was emphasized by the Privacy Authority when admonishing a citizen who had installed several cameras on the external wall of his home that could capture the public area in front, which included a playground and a square. The Authority's intervention followed a report from a Carabinieri station. From the agents' investigations, it was found that the surveillance system consisted of a first camera positioned at the entrance door of the residence capable of capturing areas not directly related, in violation of the European Regulation. The device, in addition to capturing images, allowed for recording conversations of those passing nearby and intervening by speaking through the microphone. The system also included a second camera, inactive, positioned at the end of a path connecting the entrance to an internal space of the building.

During the investigation, the privacy authority determined that the recording of the public area, compared to those of its own relevance, was carried out in a manner not compliant with the principles of lawfulness and data minimization of privacy regulations. While the processing carried out through surveillance systems installed for domestic activities is generally considered excluded from the scope of privacy regulations, if the camera's field of view extends to public areas or others' property, they are subject to the obligations of the Regulation.

In this case, the investigation found that the recording of public areas occurred without suitable lawful grounds, considering that the individual who installed the cameras did not demonstrate the existence of a legitimate interest related to an actual risk situation that could justify such processing. This is even

more applicable for the capturing of conversations occurring in public spaces through audio devices. Only in

****Presence of concrete danger situations allows the extension of video camera surveillance to common areas, public places, or areas belonging to third parties, provided that this is adequately justified and supported by appropriate documentation (e.g., reports, threats, thefts). Considering that the conduct has exhausted its effects, having promptly replaced the previously installed camera with a fixed one pointed at the entrance after the opening of the investigation, the Authority has limited its intervention to a mere warning.****

****Information System for Addictions: Approval from the Authority****

The Ministry of Health will not collect information on the status of detainees.

The Privacy Authority has given the green light to the draft decree from the Minister of Health regarding the National Information System for Addictions (SIND). The Authority issued a favorable opinion after extensive discussions with the Ministry, during which the observations regarding data protection issues raised by the Office were accepted. In particular, the Ministry has adopted the recommendation not to collect information regarding the detainee status of individuals affected by addictions in the SIND, as this is not provided for by current legislation or by the reform of penitentiary healthcare. The specific purposes that will be pursued through the use of aggregated data have also been clearly defined. The Ministry has also provided assurances regarding the "HIV Monitoring" activity carried out through the SIND. It will indeed only collect aggregated data related to the execution of the HIV serological test by users of addiction services, in which no personal data will be present. The Authority has placed particular emphasis on the data retention times, which have been determined based on proven technical-scientific arguments and in analogy with those provided for other information systems of the Ministry. In its opinion, the Authority took the opportunity to remind the entities belonging to the national statistical system (SISTAN) to comply with the sector regulations for data processing carried out through the SIND for statistical or scientific research purposes. The production of analyses and statistical indicators on the phenomenon of healthcare assistance to individuals with addictions or with risky substance use and abuse behaviors will therefore be the responsibility of the Ministry's statistical office.

****Privacy Authorities Worldwide: AI Must Center on Humanity****

A resolution on artificial intelligence applied to the workplace has also been approved.

Hamilton, the capital of Bermuda, hosted the 45th Global Privacy Assembly from October 15 to 20.

The conference, which brings together data protection authorities worldwide, consisted of an open session involving various public and private stakeholders, and a closed session reserved for privacy authorities only. The panels of the open session were dedicated to artificial intelligence and emerging technologies, personal data protection in the financial sector, and, in the closed session, to the panel on new trends in privacy and new technologies. During the closed session, several resolutions were adopted on the most current issues of personal data protection, such as the processing of health data in scientific research, the definition of global privacy standards, and generative artificial intelligence systems, such as ChatGPT. The Privacy Authority collaborated, along with the authorities from Germany and the United Kingdom, in drafting a resolution on the use of artificial intelligence in the workplace. From candidate recruitment to contract signing, and employee monitoring, the document calls for ensuring a human-centered use of AI systems. Given the potential impact on the personal and professional lives of workers, the development of artificial intelligence tools must indeed occur according to the principles of data protection by design and by default (i.e., with guarantees provided from the design stage and by default settings that minimize data use and the purposes for which they are processed). For the processing of personal data, an adequate legal basis and guarantees aimed at avoiding disproportionate surveillance concerning the purposes are also required, in compliance with the principles of necessity, proportionality, and data minimization. The document also highlights, as required by law, the right not to be subject to a decision based solely or primarily on automated means, and draws attention to the risk of adopting discriminatory models. The next Global Privacy Assembly is scheduled to take place in Jersey from October 28 to November 1, 2024.

****THE ACTIVITIES OF THE AUTHORITY - FOR THOSE WHO WANT TO KNOW MORE****

The most important interventions and measures recently adopted by the Authority

The sixth edition of the Stefano Rodotà Award is underway. The Council of Europe awards studies and research in the field of personal data protection – Press Release of November 7, 2023

The Italian Authority meets the Icelandic privacy authority. Two days of work to protect minors starting from the cases of ChatGPT, Replika, TikTok, and Seesaw – Press Release of October 27, 2023

****NEWSLETTER of the Authority for the protection of personal data (Reg. at the Court of Rome No. 654 of November 28, 2002).****

Responsible Director: Baldo Meo.

Management and editorial office: Authority for the protection of personal data, Piazza Venezia, No. 11 - 00187 Rome.

Tel: 06.69677.2751 - Fax: 06.69677.3785

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